

HOUSE No. 4026

The Commonwealth of Massachusetts

PRESENTED BY:

Russell E. Holmes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act strengthening police reform.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>1/15/2025</i>

HOUSE No. 4026

By Representative Holmes of Boston, a petition (accompanied by bill, House, No. 4026) of Russell E. Holmes relative to the powers of certain employees of the parole board and correctional institutions. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act strengthening police reform.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 127 of the General Laws is hereby amended by striking out section 127 and
2 inserting in place thereof the following section:-

3 Section 127. The governor, upon the written recommendation of the commissioner or the
4 chairman of the parole board, may convey upon field parole officers and correctional officers of
5 the investigative and fugitive apprehension units of the department of correction the authority
6 prescribed in this section for a term of 3 years, unless sooner removed.

7 Upon written application and recommendation, the commissioner of the department of
8 correction and executive director of the parole board shall certify in writing, each full-time
9 employee recommended for appointment under this section has, (1) demonstrated exemplary
10 personal conduct as well as competent professional conduct and be free from any disciplinary
11 action, excluding discipline related to administrative job performance except that which
12 contradicts and jeopardizes the public trust, within the previous 3 years; (2) if, at any time during

the 3 years, the commissioner or executive director shall notify the governor of any conduct, personal, professional or otherwise , that jeopardizes the public trust and may be grounds for revocation of appointment; (3) must be duly licensed to carry a firearm, at all times; if, for any reason the license to carry is suspended, revoked, or not renewed for any reason authority under this section is automatically revoked; (4) complete yearly certification in firearms, use of force, and de-escalation; (5) field parole officers appointed under this section must complete a minimum of 24 hours of annual training in topics related to: behavioral health disorders, substance use disorders, effective treatment responses and intentions, case management practices, motivational interviewing, reentry or social determinants of health.

Officers so appointed may serve detainers issued by the parole board, orders of removal or transfer of prisoners issued by the commissioner, apprehend and take custody of a person escaping or attempting to escape from a correctional facility, any place where a parole board hearing is being held, from the custody of an officer, or while being conveyed to and from any court or penal institution. Such special state officers of the parole board may also perform police duties: (1) when arresting parolees pursuant to warrants or detainers of the parole board or transporting said parolees, over individuals who attempt or threaten to interfere with such special state police officers of the parole board in the performance of their duties; or (2) on the premises of parole board facilities, which facilities shall include locations where the board is conducting a hearing or other board business;.

During the course of an investigation of parole violations, and upon such parole officer reasonably believes that evidence of a parole violation is concealed on such parolee's person or under such parolee's exclusive control, a person appointed under this section shall contact the

appropriate local police department, or state police, who then shall apply for and execute said search warrant.

Parole officers appointed under this section shall only be present, participate or accompany law enforcement unless the warrant or investigation directly involves individuals supervised by the parole board.

Whenever evidence of a crime has been discovered by such special state officer, the appropriate local police department or state police shall be notified immediately.

A person appointed under this section from the investigative and fugitive apprehension unit of the department of correction: (1) may in the presence of a police officer serve warrants issued by any court or trial justice in the commonwealth for the arrest of a person charged with the crime of escape or attempt to escape from a department of correction facility or from the custody of an officer of the department of correction while being conveyed to or from any such institution, and may perform police duty about the premises of penal institutions; (2) when arresting escapees pursuant to arrest warrants or transporting said escapees, over individuals who attempt or threaten to interfere with such special state police officers of said investigative and fugitive apprehension unit in the performance of their duties, (3) shall only be present, participate or accompany law enforcement unless the warrant or investigation is directly related to the responsibilities of these units.

Except for the authority contained within this chapter and section, a person so appointed under this section shall have no other law enforcement authority.